

Calendar Line 1

Case Name: *Millan v. Bouton Construction, Inc.*
Case No.: 20CV371719

This is a putative class and representative action arising from alleged wage and hour violations. The parties have reached a settlement, and the Court has granted Plaintiff's motion for preliminary approval of the settlement. Before the Court is Plaintiff's unopposed motion for final approval of the settlement. As discussed below, the Court GRANTS the motion and sets a compliance hearing for April 14, 2027, at 2:30 p.m. in Department 19.

I. Legal Standard

"In general, questions whether a settlement was fair and reasonable, whether notice to the class was adequate, whether certification of the class was proper, and whether the attorney fee award was proper are matters addressed to the trial court's broad discretion." (*Wershba v. Apple Computer, Inc.* (2001) 91 Cal.App.4th 224, 234–235, disapproved of on other grounds by *Hernandez v. Restoration Hardware, Inc.* (2018) 4 Cal.5th 260.) The trial court is free to engage in a balancing and weighing of factors depending on the circumstances of each case. (*Id.* at p. 245.) The most important factor is the strength of the plaintiffs' case on the merits, balanced against the amount offered in settlement. (See *Kullar v. Foot Locker Retail, Inc.* (2008) 168 Cal.App.4th 116, 130.)

Labor Code section 2699, subdivision (1)(2) provides that "[t]he superior court shall review and approve any settlement of any civil action filed pursuant to" the Private Attorneys General Act ("PAGA"). The trial court must "determine independently whether a PAGA settlement is fair and reasonable," to protect "the interests of the public and the LWDA in the enforcement of state labor laws." (*Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, 76–77.) A PAGA settlement may be substantially discounted, and courts often exercise their discretion to award PAGA penalties below the statutory maximum. (*Carrington v. Starbucks Corp.* (2018) 30 Cal.App.5th 504, 529; *Amaral v. Cintas Corp. No. 2* (2008) 163 Cal.App.4th 1157, 1213.)

II. Terms and Administration of Settlement

A. Settlement Terms

This case has been settled on behalf of the following class:

All current and former hourly, non-exempt hourly employees employed by Defendant in California during [October 19, 2016, through October 27, 2025].

(Declaration of Anthony L. Draper in Support of Motion for Final Approval (“Draper Decl.”), Ex. 1 (“Agreement”), ¶¶ 1.5, 1.12; Order Re: Plaintiff’s Motion for Preliminary Approval, p. 14.) The settlement includes a subset PAGA group of Aggrieved Employees, defined as “all current and former non-exempt hourly employees employed by Defendant in California” during the PAGA Period [October 19, 2019, through October 27, 2025]. (Agreement, ¶ 1.4; Order Re: Plaintiff’s Motion for Preliminary Approval, p. 6.)

Defendant will pay a non-reversionary gross settlement amount of \$825,000, and this amount includes: attorney fees of up to 35 percent of the gross settlement amount (\$288,750); litigation costs not to exceed \$40,000; a PAGA penalties allocation of \$50,000 (75 percent of which (\$37,500) will be paid to the LWDA and 25 percent of which (\$12,500) will be distributed to Aggrieved Employees as Individual PAGA Payments); a service award of up to \$10,000 to Plaintiff; and settlement administration costs not to exceed \$8,000. (Motion, pp. 3–4; Agreement, ¶¶ 1.22, 3.2.1–3.2.5.) The net settlement amount will be distributed to Participating Class Members on a pro rata basis according to the number of workweeks they worked during the Class Period, and Individual PAGA Payments will be distributed according to the number of pay periods worked during the PAGA Period. (Agreement, ¶¶ 1.23, 1.24.) For tax purposes, Individual Class Payments are allocated 25 percent to wages and 75 percent to interest and penalties. (Agreement, ¶ 3.2.4.1.) The Agreement provides that Apex Class Action, LLC (“Apex”) will serve as settlement administrator. The Court approves and appoints Apex as settlement administrator. The Agreement further provides that funds associated with checks uncashed after 180 days will be transmitted to Legal Aid at Work as the *cy pres* recipient, consistent with Code of Civil Procedure section 384, subdivision (b). The Court approves the *cy pres* designation.

In exchange for the settlement, Participating Class Members will release “[a]ny and all claims, demands, causes of action, rights, liabilities, or damages of every kind and nature,

known or unknown, suspected or unsuspected, arising during the Class Period and relating to the allegations in the Action,” including all claims that were, or reasonably could have been, alleged based on the facts contained in the First Amended Complaint and all wage-and-hour or related statutory, regulatory, or common-law claims that could have been asserted based on those facts. Aggrieved Employees, who, consistent with the statute cannot opt out of the PAGA portion of the settlement, will release “[a]ll claims to recover civil penalties pursuant to the Private Attorneys General Act of 2004 (“PAGA”) for alleged violations of the California Labor Code during the PAGA Period that were alleged, or reasonably could have been alleged, in the PAGA Notice that Plaintiff submitted to the [LWDA] or in the First Amended Complaint filed in this Action.” As the Court found at preliminary approval, the release provisions are appropriately tailored to the factual allegations of the operative pleading. (See *Amaro v. Anaheim Arena Management, LLC* (2021) 69 Cal.App.5th 521, 537–538.)

B. Administration of Settlement

In its order granting Plaintiff’s motion for preliminary approval, the Court approved Apex as settlement administrator. On March 23, 2026, Defendant delivered class data to Apex for 246 individuals; after reviewing the data and removing five individuals who fell outside the Class Period, Apex arrived at a final Class List of 241 Class Members. (Declaration of Tarus Dancy on Behalf of Apex Class Action, LLC (“Dancy Decl.”) ¶ 6.) On April 13, 2026, after updating addresses through the National Change of Address database, Apex mailed the Class Notice in English and Spanish to all 241 individuals on the Class List. (*Id.* at ¶¶ 7–8 and Ex. A.) Thirty-four Class Notices were returned as undeliverable; Apex performed skip traces and re-mailed 19 notices, leaving 15 notices (approximately six percent of the Class) undeliverable. (*Id.* at ¶¶ 9–10.) The deadline to request exclusion, submit a written objection, or submit a workweek dispute was May 28, 2026, with an extended deadline of June 11, 2026 for Class Members who received a re-mailed notice. (*Id.* at ¶ 11.) As of the date of Mr. Dancy’s declaration, July 28, 2026, Apex had received zero requests for exclusion, zero objections, and zero workweek disputes, such that all 241 Class Members are Participating Class Members. (*Id.* at ¶¶ 11–15.) Apex estimates the average Individual Class Payment will be \$1,818.32 (with a high of \$6,919.37 and a low of \$8.38), and that the average Individual PAGA Payment to the

168 Aggrieved Employees will be \$74.40. (*Id.* at ¶¶ 17–19.) The notice process has now been completed.

The Court notes one discrepancy in the notice materials. The Class Notice mailed to Class Members states that the final approval hearing would take place on July 29, 2026, while the Court’s preliminary approval order set the final approval hearing for August 19, 2026. (Dancy Decl., Ex. A, pp. 1–2; Order Re: Plaintiff’s Motion for Preliminary Approval, p. 14.) Because no Class Member requested exclusion from or objected to the settlement, and because the Class Notice otherwise accurately advised Class Members of the settlement terms, their options, and the deadlines for exercising them, the discrepancy does not appear to have prejudiced the Class.

At preliminary approval, the Court found the settlement to be fair and reasonable. Given that there are no objections and no requests for exclusion, it finds no reason to deviate from that finding now. Accordingly, the Court finds that the settlement is fair and reasonable for purposes of final approval. The Court further finds that the \$50,000 PAGA allocation is genuine, meaningful, and reasonable in light of the statute’s purposes.

III. Service Award, Attorney Fees and Costs

Plaintiff seeks a service award of \$10,000. Plaintiff has provided a declaration detailing his participation in this litigation—including approximately 40 to 45 hours spent assisting his attorneys, his agreement to a general release broader than the release given by Class Members, and the risks he undertook as the named plaintiff. (Declaration of Bladimir Lopez Millan, ¶¶ 3–9.) The Court finds that a service award is justified, and the amount requested is reasonable. The service award is approved in the amount requested.

Plaintiff’s counsel seeks an attorney fee award of \$288,750 (35 percent of the gross settlement amount, which is the maximum permitted by the Agreement). (Memorandum, pp. 11:4–20:25; Draper Decl., ¶¶ 13–23.) Plaintiff’s counsel represents that the lodestar for this action is \$296,600, based on 468 hours of attorney and paralegal time expended and estimated to be expended in finalizing this matter: 38 hours by Mr. Hawkins at \$1,050 per hour (\$39,900); 61 hours by Ms. Fernandez at \$950 per hour (\$57,950); 355 hours by Mr. Draper at \$550 per hour (\$195,250); and 14 hours by paralegal Ms. Whitson at \$250 per hour (\$3,500).

(Draper Decl., ¶ 22.) The requested fee is \$7,850 less than the claimed lodestar, resulting in a negative multiplier. The benefits achieved by the settlement justify an award of attorney fees to class counsel. The Court approves an attorney fee award in the requested amount.

Plaintiff's counsel requests reimbursement of litigation costs in the amount of \$30,543.74, which is less than the \$40,000 maximum set by the Agreement, and they provide an itemized billing report in support. (Memorandum, p. 21:1–15; Draper Decl., ¶ 24 and Ex. 2.) The Court approves reimbursement of litigation costs in the requested amount. Settlement administration costs are likewise approved in the requested amount of \$7,490, which is less than the \$8,000 maximum approved at preliminary approval. (Dancy Decl., ¶ 20.)

IV. Conclusion

The Court GRANTS the motion for final approval of the settlement and sets a compliance hearing for April 14, 2027, at 2:30 p.m. in Department 19.

Plaintiff shall prepare the order.

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Calendar Lines 2 – 4

Case Name: *Regional Medical Center of San Jose et al. v. County of Santa Clara dba Valley Health Plan*

Case No.: 20CV374597

I. Introduction and Summary of Rulings

In this quantum meruit action, plaintiffs Good Samaritan Hospital, L.P. and San Jose Healthcare System, L.P. (the “Hospitals”) seek the reasonable value of emergency and post-stabilization services rendered to members of the health plan operated by defendant County of Santa Clara, doing business as Valley Health Plan (the “County”). Approximately 13,189 claims are at issue; the sampling frame from which the Hospitals’ expert drew comprised 13,188. (Reiter Decl., Ex. E, ¶ 29 & fn. 12.) Three motions are before the Court, all brought by the County.

The first seeks to strike the opinions of Peter Dressel and limit those of Dr. Gregory Palega under Code of Civil Procedure section 2034.300, or, alternatively, leave to augment the County’s expert disclosure to add Dr. Paul Diver and Dr. David Schriger under sections 2034.610 and 2034.620. (County’s Memorandum of Points and Authorities in support of its Motion to Strike (“Mot.”), pp. 1-2, 8-12.) The second and third are motions to seal.

1. The motion to strike is GRANTED IN PART and DENIED IN PART. Mr. Dressel’s Opinion No. 1, directed at the County’s adjudication rules and payment framework, is stricken. The motion is otherwise denied as to Mr. Dressel, without prejudice to a timely motion in limine or motion under *Sargon Enterprises, Inc. v. University of Southern California* (2012) 55 Cal.4th 747.
2. The motion to limit Dr. Palega’s opinions is GRANTED as modified. No party or expert may offer opinion testimony extrapolating the results of Dr. Palega’s review to claims he did not review.
3. The alternative motion to augment is GRANTED IN PART, subject to the scope limitations and conditions in Part III.E.
4. The July 10, 2026 motion to seal is GRANTED IN PART and DENIED IN PART WITHOUT PREJUDICE.